

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JOSHUA ARMSTRONG,

Plaintiff,

Index No.:

Date Purchased:

-against-

CITY OF NEW YORK, DETECTIVE SID CAESAR,
SHIELD NUMBER 2062, DETECTIVE GREGORY
CARTY, SHIELD NUMBER 2491, DETECTIVE
MANUEL CORDOVA, SHIELD NUMBER 225,
DETECTIVE JEFF HARRIS, SHIELD NUMBER
1542, SERGEANT ROBERT KELLY, SHIELD
NUMBER 3349, AND DETECTIVE ANGUS
MACKENZIE, SHIELD NUMBER 6284,Defendants.
-----XPlaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
Ogdensburg Correct. Facility
One Correction Way
Ogdensburg, New York 13669

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
September 30, 2016TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JOSHUA ARMSTRONG
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007DETECTIVE SID CAESAR, SHIELD NUMBER 2062,
DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491,
DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225,
DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542,
SERGEANT ROBERT KELLY, SHIELD NUMBER 3349,
DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284,
25th Precinct
120 East 119th Street
New York, New York 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JOSHUA ARMSTRONG,

Plaintiff,

Index No.:

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CITY OF NEW YORK, DETECTIVE SID CAESAR,
SHIELD NUMBER 2062, DETECTIVE GREGORY
CARTY, SHIELD NUMBER 2491, DETECTIVE
MANUEL CORDOVA, SHIELD NUMBER 225,
DETECTIVE JEFF HARRIS, SHIELD NUMBER
1542, SERGEANT ROBERT KELLY, SHIELD
NUMBER 3349, AND DETECTIVE ANGUS
MACKENZIE, SHIELD NUMBER 6284,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff JOSHUA ARMSTRONG by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, respectfully alleges as follows:

1. That Plaintiff JOSHUA ARMSTRONG is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
4. That at all times hereinafter mentioned, Defendant DETECTIVE SID CAESAR, SHIELD NUMBER 2062, was employed by Defendant CITY OF NEW YORK as a police

officer.

5. That at all times hereinafter mentioned, Defendant DETECTIVE SID CAESAR, SHIELD NUMBER 2062, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant DETECTIVE SID CAESAR, SHIELD NUMBER 2062, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

7. That at all times hereinafter mentioned, Defendant DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned, Defendant DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendant DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

10. That at all times hereinafter mentioned, Defendant DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, was employed by Defendant CITY OF NEW YORK as a police officer.

11. That at all times hereinafter mentioned, Defendant DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. That at all times hereinafter mentioned, Defendant DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City and State of New

York, and under the authority of his office as a police officer for said county, city and state.

13. That at all times hereinafter mentioned, Defendant DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, was employed by Defendant CITY OF NEW YORK as a police officer.

14. That at all times hereinafter mentioned, Defendant DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, acted within the scope of his employment for Defendant CITY OF NEW YORK.

15. That at all times hereinafter mentioned, Defendant DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

16. That at all times hereinafter mentioned, Defendant SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, was employed by Defendant CITY OF NEW YORK as a police officer.

17. That at all times hereinafter mentioned, Defendant SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, acted within the scope of his employment for Defendant CITY OF NEW YORK.

18. That at all times hereinafter mentioned, Defendant SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

19. That at all times hereinafter mentioned, Defendant DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, was employed by Defendant CITY OF NEW YORK as a police officer.

20. That at all times hereinafter mentioned, Defendant DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, acted within the scope of his employment for Defendant CITY OF NEW YORK.

21. That at all times hereinafter mentioned, Defendant DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

22. That on December 13, 2014, at approximately 5:00 P.M., Plaintiff JOSHUA ARMSTRONG was lawfully inside *Prince Deli & Grocery*, a delicatessen located at 1461 Fifth Avenue in the County, City and State of New York, when he was suddenly accosted by members of the New York City Police Department including Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284.

23. That at the aforementioned time and place, Defendant DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, without just cause or provocation, struck Plaintiff JOSHUA ARMSTRONG. As a result of this unprovoked assault, Plaintiff JOSHUA ARMSTRONG sustained serious physical injuries.

24. That, at the aforementioned time and place, Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, handcuffed Plaintiff JOSHUA ARMSTRONG and placed him under arrest for Criminal Sale of a Controlled Substance, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

25. That Plaintiff JOSHUA ARMSTRONG was transported to the 25th Precinct (120 East 119th Street, New York, New York 10035) where his arrest was processed. Thereafter, Plaintiff was transported to Manhattan Central Booking (100 Centre Street, New York, New York) for arraignment, and then to Rikers Island.

26. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, initiated criminal proceedings against Plaintiff JOSHUA ARMSTRONG despite Defendants' knowledge that they lacked probable cause to do so.

27. That Plaintiff JOSHUA ARMSTRONG was incarcerated by Defendant CITY OF NEW YORK, its agents, servants, and employees from December 3, 2014, until December 17, 2014, when he was released from New York City Department of Correction custody.

28. That on August 5, 2015, Plaintiff JOSHUA ARMSTRONG was acquitted of all charges (Criminal Court Docket No. 2014NY090056 - Indictment No.: 5519/2014).

29. That on or about September 16, 2015, within 90 days of Plaintiff's acquittal but more than 30 days prior to the commencement of this action, Plaintiff JOSHUA ARMSTRONG duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

30. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284.

31. Upon information and belief, Defendant CITY OF NEW YORK waived its right to a municipal hearing regarding the above claim.

32. This action is commenced within one year and ninety days after the alleged state law

cause(s) of action arose.

33. As a result of the foregoing, Plaintiff JOSHUA ARMSTRONG sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR EXCESSIVE FORCE
UNDER 42 U.S.C. § 1983**

34. Plaintiff JOSHUA ARMSTRONG repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

35. The level of force employed by Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, was objectively unreasonable and in violation of Plaintiff JOSHUA ARMSTRONG's constitutional rights.

36. As a result of the aforementioned conduct of Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, Plaintiff JOSHUA ARMSTRONG was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983**

37. Plaintiff JOSHUA ARMSTRONG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

38. That at the aforementioned time and place, Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and

DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, placed Plaintiff JOSHUA ARMSTRONG under arrest despite Defendants' knowledge that they lacked probable cause to do so.

39. That Plaintiff JOSHUA ARMSTRONG had not committed any offense and Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

40. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, were aware that probable cause did not exist for the arrest and detention of Plaintiff JOSHUA ARMSTRONG and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff JOSHUA ARMSTRONG and such actions were committed in bad faith.

41. That, in all of the wrongful acts above alleged, Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff JOSHUA ARMSTRONG and such actions were committed in bad faith.

42. As a direct and proximate result of the above-described unlawful and malicious acts of

Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff JOSHUA ARMSTRONG was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

43. As a further result of the above-described acts, Plaintiff JOSHUA ARMSTRONG was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983**

44. Plaintiff JOSHUA ARMSTRONG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

45. That Plaintiff JOSHUA ARMSTRONG was falsely imprisoned from December 3, 2014, to approximately December 17, 2014, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

46. That Defendant CITY OF NEW YORK by and through its agents, servants, and

employees, including but not limited to, Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, intended to confine Plaintiff JOSHUA ARMSTRONG, and Plaintiff JOSHUA ARMSTRONG was conscious of the confinement, and Plaintiff JOSHUA ARMSTRONG did not consent to the confinement.

47. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff JOSHUA ARMSTRONG and damaging Plaintiff JOSHUA ARMSTRONG in his reputation and depriving him of his liberty.

48. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff JOSHUA ARMSTRONG suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983**

49. Plaintiff JOSHUA ARMSTRONG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

50. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542,

SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, misrepresented and falsified evidence before the District Attorney.

51. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, did not make a complete and full statement of facts to the District Attorney.

52. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, withheld exculpatory evidence from the District Attorney.

53. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, were directly and actively involved in the initiation of criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

54. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, lacked probable cause to initiate criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

55. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, acted with malice in initiating criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

56. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, were directly and actively involved in the continuation of criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

57. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, lacked probable cause to continue criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

58. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, acted with malice in continuing criminal proceedings Plaintiff JOSHUA ARMSTRONG.

59. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS

MACKENZIE, SHIELD NUMBER 6284, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

60. That, notwithstanding the perjurious and fraudulent conduct of Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, the criminal proceedings were terminated in Plaintiff JOSHUA ARMSTRONG' favor.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

61. Plaintiff JOSHUA ARMSTRONG repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

62. On or about December 3, 2014, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, commenced a criminal proceeding against Plaintiff JOSHUA ARMSTRONG, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

63. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff JOSHUA ARMSTRONG had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

64. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, were directly and actively involved in the initiation of criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

65. Defendants DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, UNDERCOVER OFFICER "JOHN DOE", SHIELD NUMBER C0077, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 49TH PRECINCT, lacked probable cause to initiate criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

66. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, were motivated by actual malice in initiating criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

67. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, misrepresented and falsified evidence before the District Attorney.

68. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, did not make a complete and full statement of facts to the District Attorney.

69. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE

GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, withheld exculpatory evidence from the District Attorney.

70. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, were directly and actively involved in the continuation of criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

71. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, lacked probable cause to continue criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

72. Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, were motivated by actual malice in continuing criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

73. That, notwithstanding the perjurious and fraudulent conduct of Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284,

the criminal proceedings were terminated in Plaintiff JOSHUA ARMSTRONG's favor.

AS AND FOR A SIXTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY
UNDER 42 U.S.C. § 1983

74. Plaintiff JOSHUA ARMSTRONG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

75. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

76. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

77. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff JOSHUA ARMSTRONG.

78. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff JOSHUA ARMSTRONG as alleged herein.

79. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff JOSHUA ARMSTRONG as alleged herein.

80. That Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062,

DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, while acting under the color of state law, was directly and actively involved in violating Plaintiff JOSHUA ARMSTRONG' constitutional rights.

81. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, deprived Plaintiff JOSHUA ARMSTRONG of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from excessive force;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To be free from malicious abuse of process;
- F. Not to have cruel and unusual punishment imposed upon him;
- G. To receive equal protection under the law.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

82. Plaintiff JOSHUA ARMSTRONG repeats, reiterates and realleges each and every allegation contained in this complaint and further alleges:

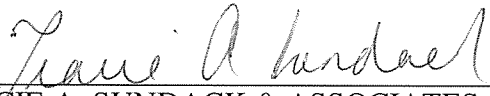
83. That each and every individual Defendant had an affirmative duty to intervene on Plaintiff JOSHUA ARMSTRONG's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

84. As a result of the aforementioned conduct of Defendants DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491,

DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, Plaintiff JOSHUA ARMSTRONG's constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

WHEREFORE Plaintiff JOSHUA ARMSTRONG demands judgment against Defendants CITY OF NEW YORK, DETECTIVE SID CAESAR, SHIELD NUMBER 2062, DETECTIVE GREGORY CARTY, SHIELD NUMBER 2491, DETECTIVE MANUEL CORDOVA, SHIELD NUMBER 225, DETECTIVE JEFF HARRIS, SHIELD NUMBER 1542, SERGEANT ROBERT KELLY, SHIELD NUMBER 3349, and DETECTIVE ANGUS MACKENZIE, SHIELD NUMBER 6284, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
September 30, 2016



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JOSHUA ARMSTRONG
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

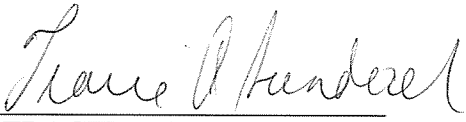
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents
thereof; the same is true to my own knowledge, except for the matters therein alleged to be on
information and belief, and as to those matters I believe them to be true. The reason this
Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the County
where your affirmant maintains her office. The grounds of my belief as to all matters not stated
upon my own knowledge are as follows: files maintained by my office and conversations with the
Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
September 30, 2016



TRACIE A. SUNDACK